



CHAPTER iii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act, 1936, relating to
Rothsay Burgh. [20th December, 1961.]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act, 1936, and it is requisite that the said
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Rothsay Burgh Order
Confirmation Act, 1961.

Short title.

SCHEDULE

ROTHESAY BURGH

Provisional Order to confer powers on the provost magistrates and councillors of the royal burgh of Rothesay with respect to parks and the local government, health and administration of the burgh, to authorise the said provost magistrates and councillors to borrow money, and for other purposes.

Whereas the provost magistrates and councillors of the royal burgh of Rothesay (hereinafter referred to as "the town council" and "the burgh" respectively) are the municipal and local authority for the burgh of Rothesay in the county of Bute and are charged with the management and administration thereof:

And whereas it is expedient that further powers should be conferred on the town council in relation to the parks of the town council as provided by this Order:

And whereas it is expedient that further provision should be made with reference to the local government, health and administration of the burgh:

And whereas it is expedient that the town council should be authorised to borrow money for the purposes mentioned in this Order:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I

PRELIMINARY

Short title
and citation.

1. This Order may be cited as the Rothesay Burgh Order, 1961.

Commence-
ment of Order.

2. This Order shall commence and have effect on the date of the passing of the Act confirming this Order, which date is in this Order referred to as the "commencement of this Order".

Interpretation.

3. In this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the following words and expressions shall have the meanings hereinafter respectively assigned to them, that is to say:—

"Act of 1947" means the Local Government (Scotland) Act, 1947;

- “ burgh ” means the royal burgh of Rothesay;
- “ county ” means the county of Bute;
- “ daily fine ” means a further fine for every day on which any offence is continued after conviction therefor;
- “ footpath ”, “ footway ” and “ foot pavement ” mean any part of a street used or intended to be used mainly for pedestrian traffic and include any portion thereof constructed or adapted for use as a carriage-crossing;
- “ magistrates ” means the magistrates of the burgh;
- “ parks ” means and includes any land whether situated within or beyond the burgh provided, owned, leased or occupied by the town council and used for the purpose of recreation, games, sports or amusement, or as a public playground, public open space, public walk and ornamental or pleasure ground, and all buildings, works, apparatus, appliances, machinery, plant, servitudes, rights, powers and privileges connected therewith;
- “ Public Parks Act ” means the Public Parks (Scotland) Act, 1878;
- “ public service vehicle ” has the same meaning as in the Road Traffic Act, 1960;
- “ sheriff ” means the sheriff of Ayr and Bute;
- “ street ” means any highway, road, bridge, square, lane, footpath, close, court or passage (not being or forming part of any railway, railway station or depot), or any part thereof open and accessible to the public, whether the same is a thoroughfare or not;
- “ town clerk ” means the town clerk of the burgh;
- “ town council ” means the provost magistrates and councillors of the burgh.

PART II

REGULATIONS AND BYELAWS

4.—(1) Subject to the provisions of this Order a person shall not without the consent in writing of the town council in any street in the burgh take any photograph by way of trade or business of any person or group of persons: As to control of street photographers.

Provided that for the purposes of this subsection the taking of a photograph for press purposes by any duly accredited representative of a newspaper, periodical or news agency or by any person systematically selling or supplying photographs to newspapers, periodicals or news agencies shall not be deemed to be the taking of a photograph by way of trade or business.

(2) Any consent of the town council given under this section may be limited as to time and may be given subject to payment of such charges and to such reasonable conditions as may be imposed by the town council and subject to the power of the town council for sufficient cause to suspend or revoke the consent.

PART II
—cont.

(3) Any person who acts in contravention of the provisions of this section or who contravenes any condition attached to a consent under this section shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding ten pounds and to a daily fine not exceeding two pounds.

Restrictions on
display of
goods in
areas, etc.

5.—(1) The town council may by notice prohibit the occupier of any premises from placing, hanging up or exposing for sale or hire any goods, wares, merchandise, matter or thing whatsoever (hereinafter in this section referred to as “goods”)—

- (a) within or on or over any railing enclosing any area or space of ground fronting, abutting on or adjoining any street and forming part of such premises or of any adjoining premises;
- (b) on any outside steps, passage, platform or landing giving access to any part of such premises from the street or to any adjoining premises;

or they may by notice require any such occupier to comply with such restrictions or conditions with respect to the placing, hanging up or exposing of any goods as aforesaid as may be specified in such notice.

(2) The provisions of the immediately preceding subsection shall also apply in relation to goods displayed as samples of or advertisements for goods available for sale or hire and to goods stored in connection with any business carried on in the premises or in any adjacent premises.

(3) In the exercise of their powers under this section the town council shall have regard only to—

- (a) the amenities of the locality in which such premises are situated; and
- (b) the possibility of danger, obstruction or inconvenience to the public.

(4) (a) Any person aggrieved by any notice under this section may appeal to the sheriff within fourteen days after the receipt of such notice and the sheriff shall have power to confirm such notice (with or without modification) or to annul such notice.

(b) Notice of the right to appeal shall be endorsed on every notice under this section.

(5) Any person who fails to comply with any notice given under the provisions of this section shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds and to a daily fine not exceeding two pounds.

(6) The provisions of this section shall not apply—

- (a) in relation to the sale or display for sale of newspapers or to the display of posters or bills relating to newspapers; or
- (b) to any advertisement to which regulations made under section 29 of the Town and Country Planning (Scotland) Act, 1947, for the time being apply.

6. The town council may make byelaws for prohibiting the marking of streets, footways and walls by writing, chalking or painting thereon:

PART II
—cont.

Byelaws as to
marking of
footways, etc.

Provided that nothing in any byelaw made under the provisions of this section shall apply to any advertisement to which regulations made under section 29 of the Town and Country Planning (Scotland) Act, 1947, for the time being apply.

7. Subject to the provisions of this Order and to any existing rights of property—

Jurisdiction of
town council
over foreshore
and beach.

(1) The town council shall have jurisdiction over—

(a) any part of the foreshore within the burgh or between the burgh and the sea and any part of the sea adjacent to such foreshore (whether within the burgh or not); and

(b) any area of bank, barrier, dune, beach, flat or other land adjacent to the foreshore being an area—

(i) wholly within the area of the burgh; and

(ii) to which the public have unrestricted access whether of right or by licence;

for the following purposes videlicet—

(A) preventing nuisance;

(B) regulating the use of the foreshore and beach by pleasure boats or vessels or aircraft let for hire;

(C) regulating the use of the foreshore and beach for riding and driving;

(D) regulating the hiring of ponies and donkeys for pleasure riding;

(E) regulating the use of the foreshore and beach for bathing recreation and general purposes;

(F) providing or granting authority on such terms and conditions as they think fit to any person to provide chairs or seats and making or allowing such person to make reasonable charges for the use of the same;

(G) prohibiting the carrying or taking by children of collapsible boats floats or similar contrivances over or across the foreshore or beach unless accompanied by an adult responsible for the safety of the children; and

(H) preventing the deposit of rubbish of any kind;

(2) The town council shall have power to make byelaws for the said purposes or any of them:

Provided that such byelaws affecting the area below high-water mark of ordinary spring tides shall not come into operation until the consent of the Minister of Transport thereto has been obtained;

PART II
—cont.

- (3) (a) A person shall not on the foreshore or beach except under authority from the town council and at such places and on such terms and subject to such conditions as the town council may appoint—
- (i) erect or use any booth, stall, stand, shop, hut, shelter or tent or any other structure or use any motor car or any vehicle for the sale of goods, wares or merchandise of any kind; or
 - (ii) sell any goods, wares or merchandise of any kind other than newspapers and periodicals; or
 - (iii) let out the use of any chair or seat; or
 - (iv) enclose or fence any part;
- (b) Any person who contravenes the provisions of this subsection or who fails to comply with any requirement of the town council thereunder shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding two pounds:
- Provided that any person aggrieved by the withholding of the authority of the town council or the imposition of any requirement of the town council under this subsection may appeal to the sheriff and the sheriff may make such order in the premises as to him shall seem just;
- (c) The town council may make such charge as they may consider reasonable for each booth, stall, stand or other structure so erected upon any foreshore or beach belonging to or held under lease by the town council;
- (4) (a) A person shall not except under authority from the town council and at such places as the town council may appoint erect or occupy or use any tent, shed or other structure upon the foreshore or beach;
- (b) Any person who contravenes the provisions of this subsection shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds and to a daily fine not exceeding two pounds;
- (5) The town council may from time to time as they think fit by agreement purchase feu or lease any part of the foreshore or beach within the burgh or any interest therein;
- (6) The provisions of this section shall not apply with respect to any advertisement as defined in the Town and Country Planning (Scotland) Act, 1947, or in any regulations made in pursuance of section 29 of that Act and the powers conferred on the town council by this section shall not be exercised with respect to any such advertisement.

Byelaws as to
boats.

8.—(1) For the prevention of noise, or of danger, obstruction or annoyance to persons boating or bathing or using the seashore, the town council may make byelaws—

- (a) regulating the speed and use of mechanically propelled boats;
- (b) requiring the fitting and use of effectual silencers on boats propelled by internal combustion engines;

(c) prohibiting, regulating or controlling the keeping or landing of boats on such parts of the seashore as may be specified in the byelaws;

(d) for regulating the distance at which boats and vessels let for hire for the purpose of sailing or rowing for pleasure shall be kept from persons bathing within such prescribed limits.

(2) Byelaws made under paragraph (c) of the foregoing subsection may also provide for charging such fee as may be prescribed by the byelaws for any licence or permission to keep a boat on any part of the seashore owned by, or let to, the town council.

(3) Byelaws made under this section may contain different provisions for different classes or descriptions of boats.

(4) A byelaw made under this section may provide—

(a) that it shall have effect not only within the burgh but also within a distance seaward from the burgh not exceeding one thousand yards from low-water mark of ordinary spring tides; and

(b) that any offence against any such byelaw committed within that distance may be inquired into and dealt with as if it had been committed within the burgh.

(5) A byelaw made under this section shall not—

(a) affect any right or privilege of owners of boats engaged in the fishing industry which may exist at the time of the making of the byelaw; or

(b) prevent the owner of any part of the seashore, or any person with his consent, exercising any rights which he could have exercised if the byelaw had not been made; or

(c) in the case of a byelaw made under paragraph (b) of subsection (1) of this section, apply to any boat which is ordinarily kept outside the burgh and is not required to be licensed by the town council; or

(d) prohibit, defeat, alter or derogate from any power, authority or jurisdiction of the Rothesay Harbour Trustees or of the Trustees of the Clyde Lighthouses or of the Clyde Pilotage Authority.

9. Section 304 (relating to special enactments where seashore and strand are within the burgh) of the Burgh Police (Scotland) Act, 1892, shall in its application to the burgh be read and have effect as if subsection (1) of the said section were deleted therefrom and the following subsection inserted in lieu thereof:—

Amendment
of section 304
of Burgh
Police
(Scotland)
Act, 1892.

“(1) A person shall not let for hire any pleasure boat except under licence from the magistrates who shall have power to require that every pleasure boat so let for hire shall be made good and seaworthy to their satisfaction and to impose such other conditions in granting a licence as they may think necessary for the safety of the lieges.

PART II
—cont.

- (2) Such licence when granted shall continue in force until the term of Whitsunday in each year and no longer unless sooner revoked or suspended which the magistrates are hereby authorised to do on legal conviction of any violation of any conditions of such licence.
- (3) If any person within the burgh lets for hire any pleasure boat without having first obtained a licence or after the revocation or suspension thereof contravenes the terms of such licence such person shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds and to a daily fine not exceeding two pounds."

Application of
sections 270
and 271 of
Burgh Police
(Scotland)
Act, 1892.

10. In the application to the burgh of sections 270 and 271 and the Fifth Schedule of the Burgh Police (Scotland) Act, 1892 (which relate to the licensing and regulations of hackney carriages), the expressions "carriage" or "hackney carriage" in such sections and schedule shall be deemed to include every wheeled carriage whatever its form or construction and however drawn or propelled which stands for hire or plies for passengers for hire within the burgh and also includes any carriage kept by the owner in any building, garage, yard or other premises within the burgh for the purpose of being let out for hire with a driver but shall not include—

- (a) any carriage so kept for the purpose of being let out for hire for the day or any longer period or so kept by any person in connection with any business carried on by such person as funeral director or owner of funeral vehicles and used wholly or partly in connection with such business; or
- (b) a public service vehicle;

and the Burgh Police (Scotland) Act, 1892, shall be read and construed accordingly.

PART III

PARKS

Acquisition of
land for parks.

11. The town council may from time to time as they think fit by agreement purchase feu or lease any lands situated either within or beyond the burgh for the purposes of this Part of this Order and for the purposes of the Public Parks Act.

Powers as to
parks.

12.—(1) Subject to the provisions of this Part of this Order the town council shall in addition to the powers conferred on the town council by the Public Parks Act and any other enactments have and may exercise all or any of the following powers in connection with the parks, that is to say:—

- (a) they may reclaim, drain and improve the surface of the parks or any part thereof and execute, construct and maintain all necessary works for that purpose;
- (b) they may form, improve and maintain roads, drives, footpaths, riding tracks and walks in the parks and do such other things as from time to time may appear to the town council to be expedient for the use and enjoyment of the parks by the public;

(c) they may—

(i) lay out and maintain or set apart in any part of the parks golf courses, tennis courts, bowling greens, putting greens, football pitches, cricket pitches, shinty pitches and hockey pitches and grounds for other outdoor games and places for dancing and roller skating;

(ii) form and maintain thereon yachting ponds, swimming pools, boating ponds, paddling ponds, curling and skating ponds; and

(iii) regulate the playing of games in the parks and the use of such places for dancing and as ponds, pools and rinks;

(d) they may provide and maintain in any of the parks any apparatus and facilities for games, recreation and amusement and may make reasonable charges for the use of such apparatus and facilities;

(e) they may—

(i) provide, erect, maintain, manage and carry on in the parks or authorise other persons to provide, erect, maintain and carry on therein refreshment rooms, stands, pavilions, waiting-rooms, shelters, stores, clubhouses, greenhouses, baths, lavatories and other conveniences, bandstands, conservatories, tool-houses, dwelling-houses for parkkeepers and other similar officers of the town council and other such erections; and

(ii) charge and take such rents, rates or charges as they think fit in respect of the use of the parks and of such yachting ponds, swimming pools, boating ponds, paddling ponds, curling and skating ponds, golf courses, tennis courts, bowling greens, putting greens, football pitches, cricket pitches, shinty pitches and hockey pitches, grounds, places for dancing and roller skating, refreshment rooms, stands, pavilions, waiting-rooms, shelters, stores, clubhouses, baths, lavatories and other conveniences, bandstands or other erections;

(f) they may provide and sell and may enter into any agreement or arrangement with any person for the provision and sale in any of the parks of refreshments subject to the provisions of all enactments, orders, byelaws or regulations relating thereto and may also upon such terms and conditions and for such periods as they may think fit grant to any person the right so to provide and sell refreshments;

(g) they may from time to time on such terms and subject to such conditions and for such period as they think fit—

(i) let or permit to be used for any special or temporary purpose portions of the parks:

Provided that nothing in this subsection shall empower the town council to permit at one and the same time the exclusive use of more than one-quarter of the total area of all the parks;

PART III
—cont.

(ii) let the right to provide apparatus for the purposes of games, recreation or amusement; and

(iii) let to any persons or clubs for or in connection with the playing of games any portion of any park laid out and maintained or set apart for the playing of such games and any buildings, works, apparatus and appliances connected therewith, or permit the use thereof by such persons or clubs:

Provided always that reasonable facilities for the playing of such games shall be available to the public in that park at all times during the playing season for such games;

- (h) they may set apart any portion of the parks as a children's playground and provide gymnastic or other apparatus therefor and may fix the age above which persons shall not be permitted to play therein;
- (i) they may make reasonable charges for admission to any parks or parts thereof during the performances of concerts or other entertainments or the presentation of illuminations or displays of fireworks or into any conservatory, winter garden, collections of natural history, science or art and other similar places and buildings under their control,

(2) A certificate shall not be granted under the Licensing (Scotland) Act, 1959, for the sale of exciseable liquor in any premises provided under this section but nothing in this subsection shall render it unlawful to grant under section 60 of the Licensing (Scotland) Act, 1959, a special permission for an entertainment in the parks.

Byelaws as to
parks.

13. In addition to the powers to make byelaws conferred upon the town council by the Public Parks Act the town council may make byelaws for all or any of the following purposes, that is to say:—

- (1) for the general management, regulation, control and better preservation of the parks and for regulating and ensuring orderly conduct and good order in the use of the parks and the regulation and control of—
 - (a) games now played or which may hereafter be played therein; and
 - (b) dancing in the parks;
- (2) for regulating and prescribing the days on which games may be played and the hours during which games will be permitted in the parks or in any parts thereof;
- (3) for regulating and varying from time to time any charges to be exacted from persons using any place for the playing of games or for dancing in the parks and the recovery thereof and the exclusion and removal of persons refusing or evading payment thereof;
- (4) (a) for licensing, appointing and regulating golf caddies and professional golfers and all other persons who may be employed in the parks for remuneration or reward;
- (b) for fixing and regulating the charges for their services;

- (5) for protecting from injury any golf courses, tennis courts, bowling greens, putting greens, football pitches, cricket pitches, shinty pitches and hockey pitches, yachting ponds, swimming pools, boating ponds, paddling ponds, curling and skating ponds, or grounds set apart for any other games, or any places for dancing or roller skating or any apparatus or implements used for or in connection with any games, recreation or amusement established or provided in any part of the parks;
- (6) for preventing or regulating the admission to the parks of vehicles and of horses and other animals;
- (7) for excluding and removing from the parks campers, hawkers and beggars and all persons committing a breach of the peace or infringing any byelaw.

14. Subject to the provisions of this Order the town council may use or permit the use of the whole or any part of any of the parks for any periods not exceeding in the whole fourteen days in any one year and not exceeding four days in succession for any special purpose other than a purpose for which such park may ordinarily be used and may when the park is being so used close the same or any part thereof against the public and may demand and take or permit to be demanded and taken such reasonable sums for the exclusive occupation of or for the admission of persons to such park or portion thereof as they may think fit.

As to temporary
 use of parks
 for other
 purposes.

PART IV

FINANCE

15.—(1) The town council may pay out of the burgh rate the reasonable expenses of the town council in connection with the reception and entertainment of distinguished persons residing in or visiting the burgh and of delegates to conferences being held in the burgh.

Reception
 and
 entertainment
 of distinguished
 persons and
 delegates.

(2) The sums by virtue of this section paid out of the burgh rate shall not in any one year exceed the produce of two pence in the pound.

16. The town council may borrow at interest for the payment of the costs, charges and expenses of and in relation to this Order such sum as may be requisite and if such costs, charges and expenses are paid out of borrowed money the same shall be repaid within five years from the date or dates of borrowing the same.

Borrowing
 powers.

PART V

MISCELLANEOUS

17.—(1) Where any tree, hedge or shrub overhangs any street, footway or footpath so as to obstruct or interfere with the light from any public lamp or to endanger or obstruct the passage of vehicles or foot passengers or to obstruct the view of drivers of vehicles the town council may serve a notice on the owner of the tree, hedge or

Lopping of
 overhanging
 trees, hedges
 and shrubs.

PART V
—cont.

shrub or on the occupier of the premises on which such tree, hedge or shrub is growing requiring him within fourteen days to lop or cut the tree, hedge or shrub so as to prevent such obstruction or interference or danger and in default of compliance the town council may themselves carry out the requisition of their notice doing no unnecessary damage and may recover the cost as a debt from the owner or occupier upon whom the notice was served.

(2) Any person aggrieved by any notice of the town council under this section may appeal to the sheriff within the aforesaid period of fourteen days provided he gives written notice of such appeal and of the grounds thereof to the town clerk and the sheriff shall have power to make such order as he may think fit.

Prizes for
garden and
other
competitions.

18. The town council may—

- (a) expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sum as they may think fit, not exceeding in any one year the sum of fifty pounds; and
- (b) expend on the provision of prizes in connection with any competitive sporting events they may hold or to which they may grant their patronage or sponsorship or any recreation or activity of a social, cultural or scientific nature such sum as they may think fit not exceeding in any one year the sum of two hundred pounds.

Power to
provide
illuminations,
floodlighting,
etc.

19.—(1) The town council may in, on, over or in proximity to any of the parks, buildings, premises or other places belonging to the town council, or (with the consent of the owner) any other building or premises, provide or arrange on such terms and conditions as they may think fit for the provision of floodlights, flashlights, decorative lighting or other illuminations and displays of fireworks, and may for such purposes provide, fit up, maintain and operate all such lamps, fittings and apparatus and appurtenances, and do all such things as may be necessary or requisite in connection therewith.

(2) Any floodlights, flashlights, decorative lighting or other illuminations and any lamps, fittings, apparatus and appurtenances provided, fitted up, maintained or operated under this section shall be so constructed, fitted up, maintained and operated as to prevent interference with any telegraphic line (as defined by the Telegraph Act, 1878) belonging to or used by the Postmaster General, or with telegraphic communication by means of any such line.

Confirming
authority for
byelaws.

20. Where byelaws are made under the powers of this Order the confirming authority for the purpose of section 301 of the Act of 1947 shall be the Secretary of State.

As to penalties
and recovery
thereof.

21. All proceedings for the recovery of penalties imposed or authorised to be imposed by or under the provisions of this Order or any byelaws made under this Order shall be instituted and conducted under and in conformity with the Summary Jurisdiction (Scotland) Act, 1954.

22. All costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the town council out of any funds (not being in the nature of capital), rates or revenues belonging to them or under their control, or out of moneys to be borrowed by them under this Order for that purpose.

PART V
—cont.

Costs of
Order.

Table of Statutes referred to in this Act

Short title	Session and chapter
Public Parks (Scotland) Act, 1878	41 & 42 Vict. c. 8.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Private Legislation Procedure (Scotland) Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6 c. 43.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6 c. 53.
Summary Jurisdiction (Scotland) Act, 1954 ...	2 & 3 Eliz. 2 c. 48.
Licensing (Scotland) Act, 1959	7 & 8 Eliz. 2 c. 51.
Road Traffic Act, 1960	8 & 9 Eliz. 2 c. 16.

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SCHEDULE

ROTHESAY BURGH

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